

PASSED

CHICKASAW TRIBAL LEGISLATURE

Permanent Resolution 22-020

**Amendments to Article 5, Chapter 1, Section 5-103.18 of the Chickasaw Nation Code
(Fees)**

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Chickasaw Tribal Legislature has established the District Court of the Chickasaw Nation and charged it with the ability to charge certain fees, and

WHEREAS, the Chickasaw Tribal Legislature desires to amend those fees.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby approves and adopts the following amendments to Title 5, Chapter 1, Section 5-103.18 of the Chickasaw Nation Code, all other parts of said Section to remain the same (additions are shown in red, deletions are stricken through):

"SECTION 5-103.18

FEES.

A. Notwithstanding any other provisions of law, the Court Clerk of the District Court, or the Clerk of any other Court shall charge and collect the following fees:

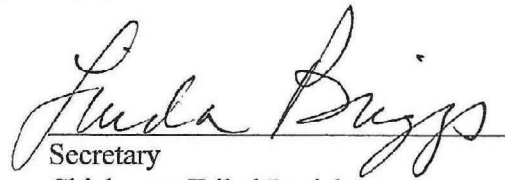
1. For furnishing photographic copies of photographic \$1.00
records, or of typewritten script or printed records, per page
2. Approving bond or undertaking, including certificate and seal \$1.00
3. Making copy of an instrument of record or on file, first page \$.50
Subsequent pages (each) \$.50
4. Certifying and Seal \$.50
5. Authentication of court records \$5.00
6. Issuance of Marriage License \$15.00
7. Mailing any documents \$5.00
8. Issuance of Divorce Petition \$35.00
9. ~~Issuance of Summons~~ ~~\$10.00~~
Service of Process Per Attempt (in Pontotoc County).....\$40.00
Service of Process Per Attempt (outside Pontotoc County).....\$60.00
10. Issuance of Domestic Relations Petition \$35.00
11. Copy of Chickasaw Nation Code regarding Domestic Relations . . \$40.00

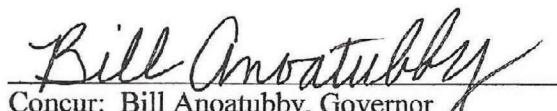
12. Other applications \$30.00

- D. Number 9 above establishes the following fees for service of process, said amount to be paid by money order (or if a member of the Chickasaw Bar Association, by check): forty dollars (\$40) per service of process attempt and/or prisoner transport made anywhere within Pontotoc County; sixty dollars (\$60) per service of process attempt and/or prisoner transport made anywhere outside Pontotoc County, plus mileage at the prevailing federal mileage rate. Notwithstanding the foregoing, the Prosecutor, the Division of Youth and Family and its departments therein, and indigent defense counsel shall not be charged any cost associated with service of process or prisoner transport. The Chickasaw Nation District Court is authorized to collect said fees for service of process and prisoner transports on behalf of the Chickasaw Lighthorse Police Department. Said fees, however, shall be detailed and transferred to the Chickasaw Lighthorse Police Department on a monthly basis to be used for the benefit of and to defray the costs for services performed by the Chickasaw Lighthorse Police Department."

Executed in regular session of the Chickasaw Tribal Legislature, meeting in Ada, Oklahoma, on October 21, 2005, by a vote of 12 ayes, 0 nays, and 0 abstentions.


Chairperson
Chickasaw Tribal Legislature


Secretary
Chickasaw Tribal Legislature


Concur: Bill Anoatubby, Governor
The Chickasaw Nation

Date: OCT 21 2005

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**Amendments to Title 5, Chapter 1 Section 5-103.18 of the Chickasaw Nation Code
(Fees)**

Explanation: This resolution amends Title 5, Chapter 1 Section 5-103.18 of the Chickasaw Nation Code to include fees for service of process and prisoner transport by the Lighthouse police department.

Requested by: Governor Bill Anoatubby
Chickasaw Nation

Presented by: Tim Colbert, Chairman
Court Development Ad Hoc Committee